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File No: EXP202505130

RESOLUTION OF TERMINATION OF THE PROCEDURE

FOR RECOGNITION

OF RESPONSIBILITY AND

VOLUNTARY PAYMENT

Of the procedure initiated by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On April 15, 2025, the Presidency of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against RED ESPAÑOLA DE IDENTIFICACIÓN DE ANIMALES DE COMPAÑÍA (hereinafter, REIAC), through the agreement that is transcribed:

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File No: EXP202505130

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for the Protection of Data, and based on the following

FACTS

FIRST: As a result of a complaint filed with the Spanish Agency for the Protection of Data, indications of a possible violation of the regulations within the competencies of the Spanish Agency for the Protection of Data were noted, and actions were initiated under file number EXP202316931.

On September 18, 2024, a resolution was issued whereby the appeal for reconsideration filed against the resolution of this Agency dated January 15, 2024, was upheld, and the complaint filed was admitted for processing in accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD).

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the supervisory authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the aforementioned LOPDGDD.

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In the framework of the investigative actions, a request for information was sent four times to RED ESPAÑOLA DE IDENTIFICACIÓN DE ANIMALES DE COMPAÑÍA with NIF G60616521 (hereinafter, REIAC), regarding the complaint indicated in the first section, for them to submit the information and documentation specified within a period of ten working days to this Agency.

THIRD: The aforementioned request was notified four times in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

The first time, the request for information, which was sent by postal mail, was returned to sender by the postal service as unknown on February 11, 2025, as noted in the acknowledgment of receipt in the file, despite having been sent to the tax address of REIAC provided by the State Agency for Tax Administration.

In accordance with Article 42.1 of the LPACAP, the notification of the request sent by post was also made available to the interested party by electronic means through the single enabled electronic address.

The second time, the request for information was notified by electronic means, not being collected by

the responsible party within the availability period, as noted in the acknowledgment of receipt in the file, and therefore understood as rejected and the procedure carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on February 24, 2025.

The third and fourth times, the request was sent by postal mail and collected by REIAC on February 20 and 27, 2025, at the address listed in the Registry of Associations and at the address stated in the Statutes of REIAC, respectively.

FOURTH: Regarding the requested information, REIAC has not submitted any response to this Spanish Agency for the Protection of Data.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

II

Procedure

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Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it shall become void, and consequently, the proceedings shall be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

III

Unfulfilled Obligation

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that REIAC has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of REIAC, the investigative power that Article 58.1 of the GDPR confers to the supervisory authorities, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the “Facts” section are deemed to constitute an infringement, attributable to REIAC, for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions.”

IV

Classification and Qualification of the Infringement

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “failure to provide access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of an enterprise, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Not providing access for the personnel of the competent data protection authority to personal data, information, premises, equipment, and processing means that are required by the data protection authority for the exercise of its investigative powers.”

V

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.

- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into account.

In this case, considering the severity of the possible infringement, particularly with regard to the consequences that its commission causes to the affected parties, the imposition of a fine, in addition to the adoption of measures, if appropriate, would be warranted.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

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In light of the circumstances presented, without prejudice to the outcome of the instruction of the procedure, it is considered appropriate to impose a sanction on REIAC for the violation of Article 58.1 of the GDPR as classified in Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine of 600.00 euros.

Therefore, in accordance with the above, by the Presidency of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against RED ESPAÑOLA DE IDENTIFICACIÓN DE ANIMALES DE COMPAÑÍA, with NIF G60616521, for the infringement of Article 58.1 of the GDPR, classified in Article 83.5 e) of the aforementioned GDPR.

SECOND: TO ORDER RED ESPAÑOLA DE IDENTIFICACIÓN DE ANIMALES DE COMPAÑÍA to provide, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, the information requested within ten working days, as required in the requests made in the context of the proceedings with file number EXP202316931 and referred to in the description of the facts of this initiation agreement.

THIRD: TO APPOINT A.A.A. as the instructor and B.B.B. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the information requests issued by the General Subdirector of Data Inspection in the context of the proceedings with file number EXP202316931 and the proof of their notification.

FIFTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be, for the alleged infringement of Article 58.1 of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of 600.00 euros, without prejudice to the outcome of the instruction.

SIXTH: TO NOTIFY this agreement to RED ESPAÑOLA DE IDENTIFICACIÓN DE ANIMALES DE COMPAÑÍA, with NIF G60616521, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document. If no allegations are made within the stipulated period, this initiation agreement may be considered a proposal for

resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the submission of allegations to

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This initiation agreement will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 480.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, at any time prior to the resolution of this procedure, voluntary payment of the proposed sanction may be made, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 480.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 360.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (480.00 euros or 360.00 euros), you must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es) and the Electronic Headquarters (sedeapd.gob.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be made against this act.

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SECOND: On May 14, 2025, REIAC proceeded to pay the sanction in the amount of 360.00 euros, making use of the two reductions provided for in the initiation agreement transcribed above, which implies the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement

and its legal qualification.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement."

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3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.

III

Voluntary Payment and Acknowledgment of Responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making a voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 360.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, REIAC has proceeded to acknowledge responsibility and make a voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their form of initiation. Likewise, Article 88 of the aforementioned regulation establishes that the

resolution that concludes the procedure shall decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts yields a total of 600.00 euros.

After having proceeded with the prompt payment and acknowledgment of responsibility by the SPANISH NETWORK FOR THE IDENTIFICATION OF PET ANIMALS, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of 360.00 euros.

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The effectiveness of the aforementioned reductions is conditioned, in any case, on the withdrawal or renunciation of any action or appeal in the administrative pathway.

SECOND: DECLARE the termination of the procedure EXP202505130, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: ORDER the SPANISH NETWORK FOR THE IDENTIFICATION OF PET ANIMALS to, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, provide the requested information within ten working days from the date this resolution becomes firm and executive, regarding the requests made in the context of the proceedings numbered EXP202316931 and referenced in the background of this resolution.

FOURTH: NOTIFY this resolution to the SPANISH NETWORK FOR THE IDENTIFICATION OF PET ANIMALS.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution will be firm in the administrative pathway and fully executive from the moment of its notification. In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative pathway as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeaepe@gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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